

IN THE SENATE

SENATE BILL NO. 1227, As Amended in the House

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING TITLE 33, IDAHO CODE, BY THE ADDITION OF A
NEW CHAPTER 70, TITLE 33, IDAHO CODE, TO PROVIDE FOR LEGISLATIVE IN-
TENT, TO PROVIDE FOR DEFINITIONS, TO REQUIRE THE STATE DEPARTMENT OF
EDUCATION TO DEVELOP A GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION
FRAMEWORK, TO REQUIRE LOCAL SCHOOL DISTRICTS AND PUBLIC CHARTER SCHOOLS
TO ADOPT CERTAIN POLICIES, TO REQUIRE THE STATE DEPARTMENT OF EDUCATION
TO DEVELOP CERTAIN STANDARDS, ASSESSMENTS, AND PROFESSIONAL DEVELOP-
MENT, TO PROVIDE FOR PARENTAL AND COMMUNITY ENGAGEMENT, TO PROVIDE FOR
PROCUREMENT REQUIREMENTS, AND TO PROVIDE FOR RULEMAKING; AND DECLARING
AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 33, Idaho Code, be, and the same is hereby amended
by the addition thereto of a NEW CHAPTER, to be known and designated as Chap-
ter 70, Title 33, Idaho Code, and to read as follows:

CHAPTER 70

GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION

33-7001. LEGISLATIVE INTENT. The legislature finds that generative
artificial intelligence technologies are rapidly reshaping classroom
learning, communication, and workforce expectations. It is the intent
of the legislature to safeguard student privacy, protect the role of the
educator, promote human-centered learning, increase transparency, and pre-
pare Idaho students for success in an economy increasingly influenced by
generative artificial intelligence technologies. It is the intent of the
legislature that Idaho's public education system ensures the responsible,
ethical, safe, and effective use of generative artificial intelligence
tools in teaching, learning, and administration.

33-7002. DEFINITIONS. For the purpose of this chapter:

(1) "Generative artificial intelligence" or "generative AI" means ar-
tificial intelligence models that use machine learning and are trained on
large volumes of data that can generate new content. When prompted, gener-
ative AI can create various outputs, including text, images, videos, com-
puter code, and music. Generative AI does not include artificial intelli-
gence models that have the primary goal of classifying data, such as those
used in automated vehicles.

(2) "Generative artificial intelligence in education" means the re-
sponsible use of generative artificial intelligence technologies to support
instruction, enhance student engagement, personalize learning, improve ad-
ministrative efficiency, or assist educator decision-making while ensuring
that human judgment remains the final authority.

1 33-7003. GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION FRAME-
2 WORK. (1) The state department of education shall develop a statewide
3 generative artificial intelligence in education framework, subject to state
4 board of education approval, for use in K-12 Idaho public schools. The
5 framework shall:

6 (a) Prioritize human-centered oversight, transparency, safety, and
7 data security;

8 (b) Ensure that no generative artificial intelligence replaces or
9 eliminates a human teacher;

10 (c) Provide guidance on instructional integration, academic in-
11 tegrity, digital citizenship, and responsible student use;

12 (d) Address accessibility, accommodations, and access to generative AI
13 tools; and

14 (e) Serve as the foundation for local school district and public char-
15 ter school policies, professional development, procurement practices,
16 and statewide standards as provided for in the provisions of this chap-
17 ter.

18 (2) The framework shall be reviewed and updated as needed through a
19 process led by the state department of education, which shall convene two (2)
20 members of the house of representatives appointed by the speaker of the house
21 of representatives, two (2) members of the senate appointed by the president
22 pro tempore of the senate, education practitioners, industry partners, and
23 workforce representatives to ensure the framework reflects emerging tech-
24 nologies, risks, and best practices.

25 33-7004. POLICY ADOPTION. Each local school district and public char-
26 ter school shall adopt a policy governing the use of generative artificial
27 intelligence by students and employees in school buildings, on school
28 grounds, during school activities, and on school-issued devices. The policy
29 shall:

30 (1) Align with the statewide generative artificial intelligence in ed-
31 ucation framework approved by the state board of education pursuant to the
32 provisions of this chapter;

33 (2) Define appropriate and prohibited uses of generative AI for in-
34 structional, administrative, and communication purposes;

35 (3) Include safeguards for student privacy, data security, accessibil-
36 ity, and academic integrity; and

37 (4) Comply with all applicable state and federal laws, including Idaho
38 student data privacy requirements, the Idaho parental rights act, the family
39 educational rights and privacy act, the children's internet protection act,
40 and the children's online privacy protection act.

41 33-7005. STANDARDS, ASSESSMENTS, AND PROFESSIONAL DEVELOPMENT. The
42 state department of education, in consultation with educators, industry
43 partners, and technology experts, shall develop and recommend to the state
44 board of education the following:

45 (1) Generative AI literacy standards for K-12 students, including the
46 knowledge and skills required to understand what generative AI is, how it
47 works, its appropriate and age-appropriate uses, and how to use it ethi-
48 cally, securely, and transparently;

1 (2) Assessment guidelines to evaluate student understanding of genera-
2 tive AI concepts, ethics, and responsible use; and

3 (3) A professional development plan to build educator capacity in safe
4 and effective integration of generative AI technologies.

5 33-7006. PARENTAL AND COMMUNITY ENGAGEMENT. The state department of
6 education shall develop for parents and legal guardians a generative AI
7 guidance document to support transparency and public understanding of gen-
8 erative AI in public education.

9 33-7007. PROCUREMENT AND TECHNOLOGY REQUIREMENTS. (1) All generative
10 AI-related software, applications, and tools procured by local school dis-
11 tricts and public charter schools shall comply with state and federal data
12 privacy laws, including the family educational rights and privacy act, the
13 children's internet protection act, and the children's online privacy pro-
14 tection act. Vendors shall disclose whether products utilize machine learn-
15 ing, predictive analytics, or generative AI and shall provide assurances re-
16 garding data protection, algorithmic transparency, and responsible use.

17 (2) The state department of education may establish a list of approved
18 generative AI tools or develop model procurement guidelines for use by local
19 school districts and public charter schools.

20 33-7008. RULEMAKING AUTHORITY. The state board of education may pro-
21 mulgate rules, subject to legislative approval, to implement the provisions
22 of this chapter.

23 SECTION 2. An emergency existing therefor, which emergency is hereby
24 declared to exist, this act shall be in full force and effect on and after
25 July 1, 2026.